

22STCV33237 22STCV33237

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-30

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Case Number: 22STCV33237 Hearing Date: June 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV33237

CREDITORS

ADJUSTMENT BUREAU, INC., vs U 2 CONSTRUCTION, INC.

June

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF LAW OFFICE OF DOK

KIM TO BE RELIEVED AS COUNSEL-CIVIL.

RULING:

The
Court grants the Motion.

The
Court will complete, sign and file the Form Order received-stamped on May 28,
2026, while correcting the Judge name on the first page.

ANALYSIS:

By the Motion, filed May 28, 2026, counsel moves to
be relieved as attorney of record for Defendant U 2 CONSTRUCTION, INC., by
declaring, in the form Declaration, at paragraph 2: "The corporate client, U 2
Construction, Inc. filed for Chapter 7 bankruptcy [sic] on July 14, 2025, Case
No. 2:25-bk-15934-BB, in the Central District Bankruptcy Court of California.
The bankruptcy case has since been closed on September 17, 2025. Client has
ceased active operations following Chapter 7 bankruptcy [sic] proceedings and no
longer able to direct counsel or participate in litigation. Client is currently
listed as 'Suspended' with the California Secretary of State, and therefore
lacks the legal capacity to prosecute or defend this action. Client has ceased to
exist as a functioning entity and is unable to direct or communicate with
counsel despite repeated attempts to contact Client by telephone and mail.
Counsel has been unable to obtain direction from Client as Client has ceased to
exist as a functioning legal entity. Good cause exists to relieve counsel as
continued representation is impossible under these circumstances."

Here, the form notice, declaration, proposed order,
and proof of service sufficiently comply with the requirements for a motion to
be relieved as counsel. (See
Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's declaration shows
cognizable grounds for withdrawal:

A breakdown in the
attorney-client relationship. (Estate of Falco v. Decker (1987) 188
Cal.App.3d 1004, 1014 (Falco).)

The client by conduct
renders it unreasonably difficult for the member to carry out the

employment effectively (e.g., noncooperation or noncommunication). (Rules Prof. Conduct, rule 1.16(b)(4). Cf. Estate of Falco v. Decker (1987) 188 Cal.App.3d 1004, 1020 ["We find no abuse of discretion in the trial court's implicit finding rejecting the contention that respondents' lack of cooperation justified appellants' withdrawal."].)

Client is a suspended corporation, and anyone who purports to exercise the powers of a suspended corporation could be guilty of a misdemeanor. (Rev. & Tax.C. §19719.)

Attorney "believes in good faith, in a proceeding pending before a tribunal, that the tribunal will find the existence of other good cause for withdrawal." Rules Prof. Conduct, Rule 1.16.

Courts can allow withdrawal of an attorney representing a corporation. (Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284; Ferruzzo v. Sup. Ct. (1980) 104 Cal.App.3d 501, 504.) However, a substitution of attorney form filed as to a corporation proceeding as a self-represented litigant would be void. (Johnson v. Hayes Cal. Builders, Inc. (1963) 60 Cal.2d 572, 576.)

Finally, no opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.)

Therefore, the Court grants the Motion and will sign the proposed Order counsel submitted.